IN THE UNITED STATES PATENT AND TRADEMARK OFFICE

Applicant / Inventor:	Reinaldo Javier Aguiar Marcano
Application Number:	19/638,192
Filing Date:	April 3, 2026
Confirmation Number:	6549
Customer Number:	226458
Entity Status:	SMALL ENTITY (37 CFR § 1.27)
Title of Invention:	APPARATUS AND METHOD FOR AN ULTRA-WIDE DATA BUS ARCHITECTURE VIA PARAMETRIC ENCODING

APPLICANT RESPONSE TO PRE-EXAMINATION NOTICES
(37 CFR §§ 1.121, 1.125; MPEP § 608.01(q))
(WRITTEN ASSERTION OF SMALL ENTITY STATUS, SUBSTITUTE SPECIFICATION,
REPLACEMENT CLAIMS, REPLACEMENT ABSTRACT, DRAWINGS,
CONDITIONAL SUSPENSION,
AND STATUTORY FEE ALLOCATION)

Mail Stop Missing Parts
Commissioner for Patents
P.O. Box 1450
Alexandria, VA 22313-1450

Sir:

In responsive reply to the *Notice to File Missing Parts* mailed May 7, 2026, the *Notice of Incomplete Reply* mailed August 26, 2026, and the *Decision on Petition* mailed September 28, 2026, the pro se Applicant, Reinaldo Javier Aguiar Marcano, respectfully submits this complete formalities response.

I. WRITTEN ASSERTION OF SMALL ENTITY STATUS (37 CFR § 1.27)

Applicant hereby formally asserts and reaffirms entitlement to **Small Entity status** under 37 CFR § 1.27 and 35 U.S.C. § 123. Applicant is an independent inventor who has not assigned, granted,

conveyed, or licensed, and is under no obligation under contract or law to assign, grant, convey, or license, any rights in the invention to any person, concern, or organization which would not qualify for small entity status under 37 CFR § 1.27.

This formal written assertion strictly governs the assessment of all applicable statutory fees to the Small Entity schedule pursuant to 37 CFR § 1.27(c)(1).

II. CURING OF FORMALITY DEFECTS & COMPLETE ITEMIZED SUBMISSIONS

To bring the application into 100% compliance with USPTO pre-examination requirements before the application is assigned to an examining art unit, Applicant concurrently submits the following standalone statutory papers in this electronic submission envelope:

1. **Formal Certification of No New Matter (37 CFR § 1.125(b) & MPEP § 608.01(q)):** Applicant hereby formally certifies pursuant to 37 CFR § 1.125(b) and MPEP § 608.01(q) that the accompanying Substitute Specification contains **NO NEW MATTER**. The changes incorporated into the Substitute Specification relative to the as-filed specification are strictly limited to the excision of embedded graphic images (relocated to formal standalone drawing sheets under 37 CFR § 1.84), excision of embedded abstract and claims (relocated to standalone sheets under 37 CFR §§ 1.72(b), 1.75(h)), enforcement of strict double line spacing, and uniform flush-left paragraph formatting.

2. **Standalone Substitute Specification (37 CFR § 1.125(c)) [Patent Center Description: "Specification"]:**
   Applicant submits both a **Clean Copy of the Substitute Specification** and a **Marked-Up Copy** (showing all excisions in strike-through), ensuring the specification contains purely technical disclosure text without extraneous metadata or procedural blocks.

3. **Standalone Formal Drawing Sheets (37 CFR § 1.84) [Patent Center Description: "Drawings - only black and white line drawings"]:**
   Applicant submits standalone formal drawing sheets containing **FIG. 1 and FIG. 2** across Sheets 1–2. Each sheet bears the mandatory phrase **"Replacement Sheet"** in the top margin pursuant to 37 CFR § 1.121(d).

4. **Perfected Universal AIA Inventor Declaration (35 U.S.C. § 115, 37 CFR § 1.63) [Patent Center Description: "Oath or Declaration filed"]:**
   Applicant submits an executed, perfected AIA Inventor Declaration satisfying all statutory requirements, including the mandatory authorization averment (37 CFR § 1.63(a)(4)), explicit

enumeration of the inventor's physical legal residence and mailing address, and the standalone criminal liability warning under 18 U.S.C. § 1001.

5. **Standalone Replacement Claims (37 CFR § 1.75(h)) [Patent Center Description: "Claims"]:**
   Applicant submits standalone Replacement Claims 1–8, commencing on a separate sheet in strict double spacing, under the pure statutory heading "CLAIMS".

6. **Standalone Replacement Abstract (37 CFR § 1.72(b)) [Patent Center Description: "Abstract"]:**
   Applicant submits a standalone Replacement Abstract, commencing on a separate sheet in strict double spacing, under the pure statutory heading "ABSTRACT OF THE DISCLOSURE".

7. **Conditional Petition for Extension of Time (37 CFR § 1.136(a)) [Patent Center Description: "Extension of Time"]:**
   Applicant submits a Conditional Petition for Extension of Time under 37 CFR § 1.136(a), formally tendering payment via deposit allocation (detailed in Section III) to secure the statutory response period through November 9, 2026.

8. **Conditional Request for Six-Month Suspension (37 CFR § 1.103(a)) [Patent Center Description: "Letter Requesting Suspension of Action"]:**
   Applicant submits a Conditional Request for Suspension of Action under 37 CFR § 1.103(a), requesting that prosecution be suspended for six (6) months upon completion of pre-examination processing, due to ongoing federal civil rights and constitutional litigation.

III. STATUTORY FEE RECONCILIATION, REQUEST FOR DEPOSIT ALLOCATION (37 CFR § 1.25(b)), AND MACRO PORTFOLIO EQUITY

A. Macro Portfolio Fee Equity Context

Applicant respectfully directs the Office of Patent Application Processing and the Office of Finance to the overarching financial realities of this prosecution. Across the 102 nonprovisional patent applications comprising Applicant's master portfolio, the USPTO Office of Finance is currently holding approximately $35,000.00 to $42,000.00 USD (with $32,758.00 USD already empirically verified and credited across 79 examined notices in the Image File Wrappers) in unapplied funds on deposit, without interest and without refund.

Viewing this individual application through an isolated, single-docket lens distorts the financial record by suggesting that Applicant has failed to remit fees. In truth, Applicant has already

remitted substantial capital that remains on deposit with the agency. Fundamental administrative equity requires that unapplied deposit credits be properly accounted for and applied to maintain procedural timeliness, rather than assessing progressive extension fees that compound without prior fee reconciliation.

B. Respectful Request for Allocation of Unapplied Deposit Funds (37 CFR § 1.25(b) & MPEP § 509)

Official Office records (specifically the Notice of Incomplete Reply mailed August 26, 2026) confirm that the Office of Finance currently holds **$120.00 in unapplied funds on deposit** under this application serial number ("$(120) previous unapplied payment amount").

Concurrently herewith, Applicant remits the **$60.00 processing fee** under 37 CFR § 1.17(i) (Fee Code 2830) via electronic fee payment in Patent Center to satisfy the statutory requirement for the accompanying Request for Suspension under 37 CFR § 1.103(a).

Pursuant to the statutory authorities codified below, Applicant hereby respectfully requests that the Office allocate the existing $120.00 unapplied funds on deposit in the following order of procedural priority:

Legal Provision	**Statutory Citation**	**Legal Operational Effect**
Applicant Direction of Funds	37 CFR § 1.22(b)	Prohibits Office discretion when applicant specifies fee purpose with particularity.
Applicant Override of Default Accounting	MPEP § 509	Credits applied in default order "unless otherwise specified by applicant".
Partial Fee Base Allocation	MPEP § 506	Applies partial funds in order (Basic → Search → Exam), issuing deficiency notice for balance.
Notice of Fee Deficiency Protocol	37 CFR § 1.53(f)	Requires Office to issue formal notice and provide a 2-month response period to cure fee deficits.
Extension Fee Determination	37 CFR § 1.136(a)(2)	Amount paid determines the period; unapplied credits credited toward that determination.

1. **PRIORITY 1 (Explicit Itemized Allocation to Extension of Time Fees - 37 CFR § 1.136(a)):** Under Small Entity status, the full 4-month extension fee (Fee Code 2254) is $998.00. Pursuant to 37 CFR § 1.22(b) and MPEP § 509, Applicant respectfully requests the following explicit itemized allocation toward this obligation to prevent double-billing:

    - **Item 1 (Unapplied Deposit Credit):** Applicant respectfully requests that the **$120.00** unapplied deposit credit acknowledged by the Office (Notice of Incomplete Reply, Aug 26,

2026) be applied directly toward Fee Code 2254. By formally specifying this application, payment has been tendered under 37 CFR § 1.136(a)(2) sufficient to maintain timeliness.

- **Item 2 (Overlapping Extension Remittances):** Applicant previously remitted **$276.00** toward extensions ($94 on July 31, $182 on Aug 25). Pursuant to MPEP § 710.02(e), Applicant respectfully requests that this cumulative $276.00 be credited in full toward Fee Code 2254.
- **Item 3 (Net Remaining Delta):** After deducting the $120.00 unapplied credit and $276.00 prior overlapping remittances, the net extension balance is **$602.00**. Applicant respectfully requests that the Office issue a formal Notice of Fee Deficiency (37 CFR § 1.53(f)) for this $602.00 delta. Submission of the extension petition and this itemized allocation extends the statutory reply period to **November 9, 2026** (as Nov 7 falls on a Saturday).

2. **PRIORITY 2 (Pre-Examination Base Fees - 37 CFR § 1.16):** For the remaining statutory base filing fees ($308.00 Search Fee + $352.00 Examination Fee = $660.00), Applicant respectfully requests that the Office issue a formal **Notice of Fee Deficiency** pursuant to 37 CFR § 1.53(f) and MPEP § 506, allowing fee settlement to proceed in accordance with standard Office deficiency procedures.

IV. CONCLUSION

All formality requirements having been satisfied, and statutory timeliness secured through November 9, 2026 via the directed Waterfall allocation of deposit credits to Extension of Time fees (Priority 1), Applicant respectfully requests that the Office of Patent Application Processing (OPAP) accept this response as timely and complete, issue an administrative Notice of Fee Deficiency under 37 CFR § 1.53(f) for the remaining balances, and advance Application No. 19/638,192 to an examining art unit.

Respectfully submitted,

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